

Rôles d'Oléron (Law of Oleron), which was adopted near La Rochelle, France, in 1160, and was later more widely accepted.

By the early 13th century, northern European ports such as Hamburg had codes to combat piracy. The Hanseatic League was a trading organization formally established in 1356 as an umbrella under whose protection merchants from many towns around the Baltic Sea and further afield could trade.

These codes soon came to have sections dealing with matters not purely to do with trading at sea, such as the repayment of debts and the freedom of foreign merchants from *aubaine*, the right of rulers to seize the property of foreigners when they died. The rise of great trading fairs—such as those in Leipzig and Frankfurt, in Germany, or

Troyes and Lagny, in France—in the 11th–13th centuries increased the need for regulations to determine relations between merchants from different states. This was especially relevant because these fairs often fell under the direct jurisdiction of a local lord and outside the protection of royal laws. Merchants needed more confidence that their rights (and their goods) would be protected.

In England, as elsewhere, the *Lex Mercatoria* was recognized as an expedient way of resolving disputes and encouraging foreign trade. In 1303, King Edward I issued the *Carta Mercatoria* (*Merchant Charter*), which granted foreign merchants freedom to trade, exempted them from certain regulations, and enjoined officials “to do speedy justice ... according

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And this Law of Merchants ... ought in regard of commerce to be esteemed ... as the Law of the Twelve Tables.

Gerard de Malynes
Consuetudo vel Lex Mercatoria
(*The Custom or Law Merchant*), 1622

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to the Law Merchant.” Cases involving foreign traders were heard in the Court of King’s Bench, not by the regular crown-appointed judiciary, but by expert assessors or jurors. These were chosen by the parties themselves and judged cases according to the *Lex Mercatoria* rather than the laws of England.

Merchant courts

Throughout Europe, the merchant courts that emerged to administer the *Lex Mercatoria* included the Civil Rota in Genoa, the Curia Maris in Pisa, and the Consolat del Mar in Barcelona. Officials with specialist knowledge of trading customs and norms administered these courts, starting with the Sea Consuls of Genoa in 1206. This system assured merchants that disputes could be resolved satisfactorily and swiftly. In turn, this assurance fostered the use

A depiction of 14th-century Venice shows it to be a bustling city with boats in the harbor and merchants on the quay. It was one of the first ports to have its own maritime trading laws.

